



CHAPTER xl.

An Act to empower the London County Council A.D. 1924.
to construct and work a tramway to make a
street widening and for other purposes.

[14th July 1924.]

WHEREAS it is expedient that the London County Council (in this Act referred to as "the Council") should be empowered to construct and maintain the tramway described in this Act and that provisions should be made with respect to the use and working of such tramway :

And whereas it is expedient to confer on the Council powers to acquire lands and to make the street widening hereinafter specified :

And whereas it is also expedient to confer upon the Council in connection with and for the purposes of the tramway and improvement by this Act authorised and otherwise in connection with their tramway undertaking the powers hereinafter set forth :

And whereas it is expedient to confer on the Council such powers as are hereinafter set forth with regard to the raising of money for the purposes of this Act :

And whereas an estimate has been prepared by the Council as to the amount which they will require to expend on capital account for the purposes of this Act and such estimate (being calculated to cover the original cost of purchasing lands and executing the works without any allowance in respect of returns from re-sale or letting of

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A.D. 1924. lands which will be ultimately available for that purpose)
 is as follows :—

For the construction and equipment of the	£
tramway and the purchase of lands	
therefor and for other purposes of the	
tramway undertaking and for the im-	
provement and works connected there-	
with - - - - -	48,765

And whereas the Council have deposited with the clerk of the peace for the county of London plans and sections describing the lines and levels of the tramway and street improvement by this Act authorised and the lands which may be taken for the purposes thereof or otherwise under the powers of this Act and also a book of reference to such plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of those lands and such plans sections and book of reference are respectively referred to in this Act as the deposited plans sections and book of reference :

And whereas the objects aforesaid cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

PART I.

PRELIMINARY.

Short title. 1. This Act may be cited as the London County Council (Tramways and Improvements) Act 1924.

Act divided into Parts. 2. This Act is divided into Parts as follows (namely) :—

- Part I. Preliminary.
- Part II. Tramway.
- Part III. Street work.
- Part IV. Purchase of lands.
- Part V. Extensions of time.
- Part VI. Miscellaneous and financial.

3. The following Acts and parts of Acts (that is to say) :— A.D. 1924.

The Lands Clauses Acts and section 3 (Interpretation of terms) and Parts II. and III. of the Tramways Act 1870 Incorporation of Acts.

so far as the same are applicable for the purposes of and not varied by or inconsistent with this Act are hereby incorporated with and form part of this Act with the following exceptions and modification :—

- (a) Sections 127 and 133 of the Lands Clauses Consolidation Act 1845 shall not apply in the case of any lands purchased by the Council under the powers of this Act;
- (b) The bond required by section 85 of the Lands Clauses Consolidation Act 1845 shall be under the seal of the Council and shall be sufficient without the addition of the sureties mentioned in that section.

4.—(1) In this Act unless the subject or context otherwise requires— Interpretation.

“ The Council ” means the London County Council;
“ The county ” means the administrative county of London;

“ The tramway ” means the tramway by this Act authorised and any part thereof;

“ The improvement ” means the street widening by this Act authorised and any part thereof;

“ The works ” means the tramway and the improvement;

“ Street ” has the meaning assigned to that term in the Metropolis Management Acts 1855 to 1893;

Terms to which meanings are assigned by enactments incorporated with this Act or which have therein special meanings have in and for the purposes of this Act the same respective meanings but the expressions “ the promoters of the undertaking ” and “ the company ” in the Lands Clauses Acts shall be construed to mean the Council.

(2) Where in this Act any distance or length is stated in the description of any of the works that distance or length shall be read and have effect as if the words “ or thereabouts ” were inserted thereafter.

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PART II.

TRAMWAY.

Power to
make
tramway.

5. Subject to the provisions of this Act the Council may make form lay down and maintain the tramway hereinafter described in the lines and according to the levels shown on the deposited plans and sections with all such rails plates sleepers junctions turntables turnovers crossings passing-places works and conveniences connected therewith as may be necessary or proper therefor:—

Tramway No. 3 (double line 2 furlongs 1·85 chains in length) commencing by a junction with the existing tramway in Southwark Bridge Road at its point of termination 3 chains northward of the junction of Southwark Bridge Road with Sumner Street passing thence along Southwark Bridge Road over Southwark Bridge and along and terminating in Queen Street Place at a point 2 chains southward of the junction of Upper Thames Street with Queen Street Place:

Tramway No. 3 will be made or pass in through or into the following places The metropolitan borough of Southwark and the city of London.

As to
system of
traction to
be adopted.

6.—(1) Nothing in this Act shall authorise the Council to place in the metropolitan borough of Southwark any posts or wires in on or over any street for working the tramway by electrical power unless the Council of such metropolitan borough by resolution have consented to the adoption therein of a system of traction conducted by means of posts and wires placed overhead.

Such consent may be subject to any limitations or conditions which may be expressed in the resolution and may apply to any particular streets or roads or fix any limited period defined by such resolution.

A copy of such resolution under the seal of the Council of such metropolitan borough shall be delivered to the Council and shall be evidence of the due passing of such resolution.

(2) No posts shall be placed in the centre of any street for the purpose of working the tramway by a system of traction conducted by means of posts and wires placed overhead without the consent of the commissioner

of police of the metropolis which consent shall not be unreasonably withheld. A.D. 1924.

7. Notwithstanding anything contained in this Act or shown on the deposited plans or sections the following provisions shall unless otherwise agreed between the Council and the mayor and commonalty and citizens of the city of London trustees of the Bridge House Estates the owners of Southwark Bridge (hereinafter referred to as "the corporation") both of which bodies are hereby empowered to make any such agreement have effect in regard to the tramway:—

For protection of corporation of London.

- (1) Before commencing the construction of the tramway the Council shall obtain from the corporation and the corporation shall grant to the Council a licence upon and subject to the terms and conditions hereinafter set forth to construct maintain and use the tramway and the tramway shall not be constructed or used except during the continuance of such licence or an extension thereof. The said licence shall subject to the provisions of this section be for a period of twenty-one years from the date thereof and may be extended from time to time on the application of the Council for such further period or periods as the corporation may think fit:
- (2) Such licence or any extension thereof may be determined by the corporation at any time by their giving to the Council twelve months' notice in writing of such determination such notice to be under the hand of the town clerk of the city of London or such other person thereunto authorised by the corporation provided that no such notice shall be given until after it shall have been decided by a referee who shall be appointed by the Minister of Transport on the application of the corporation that a continuance of the user of the tramway is dangerous or that it does unduly interfere with the traffic upon or over Southwark Bridge or in the streets of the city of London:
- (3) On the effluxion or other determination of any such licence or any extension thereof the Council

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shall with all convenient speed and in any case within six weeks from the time of such effluxion or determination remove the tramway and rails and fill in the ground and make good the surface and restore the carriageways on which the tramway was laid to the reasonable satisfaction of the corporation and clear away all surplus paving or metalling material or rubbish occasioned by such work:

- (4) The Council shall pay to the corporation the sum of one pound per annum as and by way of a way-leave for the tramway in respect of every year in which such licence or any extension thereof is operative:
- (5) The tramway shall terminate in a single line track of such length and in such position on the northern approach to Southwark Bridge as shall be determined by the corporation in their sole discretion:
- (6) The Council shall not erect or construct or cause to be erected or constructed any shelter post or other structure on the northern approach to Southwark Bridge:
- (7) The cost of constructing the tramway and all works and improvements connected therewith and working maintaining and using the same or otherwise in connection therewith shall be borne and paid by the Council and no part thereof shall be charged upon or defrayed out of the general county rate or out of any other rate or fund to which the ratepayers of the city of London contribute or may hereafter contribute:
- (8) The tramway shall be constructed in all respects to the reasonable satisfaction of the corporation and under the supervision of an engineer appointed by them:
- (9) The construction of the tramway when commenced or any works of or connected with the maintenance or repairs thereof or with the removal of the tramway under subsection (3) of this section shall be proceeded with continuously until completed and throughout the

period of construction repair or removal at least one half of the carriageway and the whole of both of the footways of Southwark Bridge and of the streets at either end thereof upon or over which the tramway is constructed shall be kept open and clear for the use of the public to the satisfaction of the corporation and of the commissioner of police of the city of London:

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- (10) The Council shall at their own expense at all times maintain and keep in good condition and repair with such material and in such manner as the corporation shall direct and to their satisfaction so much of any road whereon the tramway is laid as lies between the rails of the tramway and the portion of the road between the lines of the tramway and so much of the road as extends eighteen inches beyond the rails of and on each side of the outside lines of the tramway:
- (11) The Council shall not place in on or over any part of the streets or on Southwark Bridge along or over which the tramway passes any rails wires posts or other conveniences or things required for working the tramways by overhead electrical power:
- (12) The Council shall reimburse to the corporation all expenses reasonably incurred by the corporation in or in connection with the construction maintenance and user of the tramway by the Council:
- (13) The Council shall fully indemnify the corporation against all claims for damage by reason of the construction maintenance or user of the tramway and shall as regards the vaults beneath Queen Street Place compensate the corporation and their lessees for any loss expenses or damage incurred or sustained by them or any of them in consequence of the construction maintenance or user of the tramway:
- (14) The third proviso to section 17 (Incorporating certain provisions of former Acts) of this Act shall in relation to so much of the tramway as is situate within the area of jurisdiction

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of the city police be read and construed as if the words "or by the commissioner of police of the city of London" had been inserted therein after the words "or by the commissioner of police of the metropolis":

(15) If any difference (other than a difference to which the Lands Clauses Acts apply) shall arise between the Council and the corporation as to any matter or thing relating to the tramway or to the provisions of this section such difference shall be referred to some person as sole arbitrator to be appointed on the application of either party by the Minister of Transport and subject thereto the provisions of the Arbitration Act 1889 shall apply to any such arbitration:

(16) Nothing in this section shall affect or derogate from any rights powers or remedies of or belonging to the Corporation.

For protection of
Merchant
Taylors'
Company
and others.

8. For the protection of the Merchant Taylors' Company and their assigns as lessees from the Corporation of London for an unexpired term of 897 years of the vaults numbered or known as 1 to 11 Queen Street Place and situate beneath Queen Street Place and the northern approach to Southwark Bridge (which company and their assigns are in this section referred to as "the owners") and of Messieurs Edgar Taylor Henry Claude Taylor and Arthur Enfield Taylor carrying on business under the style or firm of John Taylor and Sons and their assigns as sub-lessees of four of the said vaults numbered 7 8 9 and 10 respectively (which firm and their assigns are in this section referred to as "the lessees") the following provisions shall unless otherwise agreed in writing between the Council and the owners and the lessees have effect (that is to say):—

(1) For the purposes hereinafter in this section mentioned a surveyor may from time to time be appointed by the owners (which surveyor is in this section referred to as "the surveyor") and the owners shall notify to the Council the name of the person so appointed:

(2) One month before the Council commence to construct the portion of the tramway which

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will be situate in Queen Street Place or on the said approach or to execute any works in connection with such portion of tramway they shall send to the surveyor plans sections working drawings and specifications showing the exact site and level and the manner and materials in at or with which the said portion of tramway and all works in connection therewith are intended to be constructed and the exact extent of any excavations intended to be made in the roadway of Queen Street Place and the said approach :

(3) If the surveyor is of the opinion that the construction of the said portion of tramway or any works in connection therewith or other operations of the Council in Queen Street Place and on the said approach will cause any injury or risk of injury to any of the said vaults the surveyor may serve notice on the Council requiring them to alter or strengthen the arches of the said vaults or any of them or to reconstruct the said vaults or the foundations thereof in such manner or to take such other precautions for the purpose of preventing such injury or risk of injury as may be specified in the notice and if the Council are of the opinion that any requirements of any such notice are unreasonable the same shall be submitted to an arbitrator as hereinafter provided In the construction of the said portion of tramway and works in connection therewith the Council shall carry out to the reasonable satisfaction of the surveyor all such requirements as may be specified in any such notice or be determined by an arbitrator as the case may be :

(4) During the construction of the said portion of tramway and works as aforesaid and the performance of such alterations as aforesaid the surveyor shall be entitled to superintend the works and operations of the Council and the Council shall give to him all reasonable facilities for that purpose If in the opinion of the surveyor any additional precautions (beyond such requirements as aforesaid) ought to be

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taken by the Council for the protection of the said vaults he shall give notice thereof to the Council and the Council shall take all such additional precautions as may be stated in any such notice or as may be determined by an arbitrator as aforesaid:

- (5) Any dispute which may arise between the Council on the one hand and the owners or the surveyor on the other hand and any question which is by this section required to be determined by an arbitrator shall be referred to a single arbitrator to be agreed between the Council and the owners or failing agreement to be appointed by the President of the Institution of Civil Engineers and subject thereto the provisions of the Arbitration Act 1889 shall apply to the reference.

PART III.

STREET WORK.

Power to
Council to
make im-
provement.

9. The Council may at the place mentioned or described in the Second Schedule to this Act increase the width of the carriageway of the street or road therein mentioned by reducing the width of the footpath at the side thereof to the extent shown on the deposited plans but the Council shall not in exercising the powers of this section reduce the width of such footpath to less than six feet.

PART IV.

PURCHASE OF LANDS.

Power to
Council to
take lands.

10.—(1) Subject to the provisions of this Act the Council may enter upon take and use any of the lands shown on the deposited plans and described in the deposited book of reference which they may require for the purposes of the works or for providing space for the erection of houses and buildings adjoining or near to the works or for the purposes of recoupment or exchange or for other purposes of this Act.

(2) The powers of the Council for the purchase of lands by agreement shall be deemed to extend to and to authorise the purchase by the Council by agreement of

any other lands which they may think it desirable to purchase in order to provide substituted sites or facilities for any persons whose lands may be required by them for the purposes of or in connection with the works. A.D. 1924.

11. In settling any question of disputed compensation under this Part of this Act the arbitrator settling the same shall not award any sum of money for or in respect of any improvement alteration or building made or erected or for or in respect of any interest in the lands created after the sixth day of November one thousand nine hundred and twenty-three if in the opinion of such arbitrator the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made erected or created as the case may be with a view to obtaining or increasing compensation under this Act. Compensation in case of recently altered buildings.

12. The powers of the Council for the compulsory purchase of lands for the purposes of this Act shall cease on the thirtieth day of September nineteen hundred and twenty-seven. Period for purchase of lands.

PART V.

EXTENSIONS OF TIME.

13. The time limited for the construction of tramways and improvements as follows— Extension of time for construction of tramways and improvements.
- (a) Tramways Nos. 2A and 10A and the widenings of Farringdon Road and Clerkenwell Road described in and authorised by the London County Council (Tramways and Improvements) Act 1909 :
 - (b) Tramway No. 10D described in and authorised by the London County Council (Tramways and Improvements) Act 1910 ;
 - (c) Tramway No. 4 and the widenings of Eltham Road and High Street Eltham described in and authorised by the London County Council (Tramways and Improvements) Act 1914

as extended by orders made by the Minister of Transport under the Special Acts (Extension of Time) Act 1915 as amended by the War Emergency Laws (Continuance) Act 1920 is hereby further extended until the thirtieth day of September nineteen hundred and twenty-seven.

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Extension
of time for
compulsory
purchase of
land.

14. The time limited by the London County Council (Tramways and Improvements) Act 1914 for the compulsory purchase of lands (so far as it relates to lands for the purpose of widenings of Eltham Road and High Street Eltham described in and authorised by the said Act of 1914) as extended by orders made by the Minister of Transport under the Special Acts (Extension of Time) Act 1915 as amended by the War Emergency Laws (Continuance) Act 1920 is hereby further extended until the thirtieth day of September nineteen hundred and twenty-six.

Revival of
powers and
extension
of time for
purchase of
easement.

15. The powers granted by section 43 of the London County Council (Tramways and Improvements) Act 1909 for the purchase taking and using by the Council of an easement or right of constructing a girder bridge over the property numbered on the plans deposited in respect of the Bill for the said Act 4 in the parish of St. James and St. John Clerkenwell and of maintaining a roadway on such bridge and of executing such other works as may be necessary or expedient for the purposes aforesaid as provided by the said section are hereby revived and may be exercised until the thirtieth day of September nineteen hundred and twenty-six.

The provisions of section 17 of the said Act of 1909 shall extend and apply to and in respect of the powers exercisable by the Council under the provisions of this section and as if the name of the London and North Eastern Railway Company were substituted for that of the Great Northern Railway Company.

PART VI.

MISCELLANEOUS AND FINANCIAL.

Period for
completion
of works.

16. If the works are not completed within the period of seven years from the passing of this Act then on the expiration of that period the powers of the Council under this Act for the execution of the same respectively shall cease except so far as the same are then completed.

Incorporat-
ing certain
provisions
of former
Acts.

17. The sections of the London County Tramways (Electrical Power) Act 1900 the London County Council (Tramways and Improvements) Act 1901 the London County Council (Tramways and Improvements) Act 1907 and the London County Council (Tramways and Im-

provements) Act 1911 of which the numbers and marginal notes are respectively set forth in the second and third columns of the First Schedule to this Act are hereby incorporated with and form part of the Parts of this Act of which the numbers are respectively set opposite to the said sections in the first column of the said schedule and the said sections shall so far as applicable extend and apply to the works and to the lands by this Act authorised to be acquired by the Council and to the Council in respect thereof as fully and effectually as if such sections had been re-enacted with the necessary modifications in this Act with reference thereto : A.D. 1924.

Provided that where in any of the incorporated sections the Board of Trade is referred to there shall be substituted therefor a reference to the Minister of Transport :

Provided also that for the purposes of the incorporated sections 48 and 49 of the said Act of 1901 the Metropolitan Water Board and the London Hydraulic Power Company shall be deemed to be water companies :

Provided further that in its application to the tramway section 11 of the said Act of 1901 shall be read and construed as if the words "or by the commissioner of police of the metropolis" had been inserted therein after the words "twenty inhabitant ratepayers of such district."

18. The Council may expend on capital account for the purposes of this Act such money as they may from time to time think fit not exceeding forty-eight thousand seven hundred and sixty-five pounds and may borrow or otherwise provide the money required for those purposes in accordance with the provisions of the London County Council (Finance Consolidation) Act 1912. Money to be raised on capital account.

19. All costs and expenses of the Council in the execution of this Act (except so far as they may be otherwise provided for by this or any other Act) shall be defrayed as payments for general or special county purposes within the meaning of the Local Government Act 1888 as the Council may decide and the costs charges and expenses preliminary to and of and incidental to the preparing for obtaining and passing of this Act shall be paid by the Council in like manner. As to payments under this Act.

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The SCHEDULES referred to in the foregoing Act.

FIRST SCHEDULE.

(Referred to in section 17.)

PROVISIONS OF THE LONDON COUNTY TRAMWAYS (ELECTRICAL POWER) ACT 1900 THE LONDON COUNTY COUNCIL (TRAMWAYS AND IMPROVEMENTS) ACT 1901. THE LONDON COUNTY COUNCIL (TRAMWAYS AND IMPROVEMENTS) ACT 1907 AND THE LONDON COUNTY COUNCIL (TRAMWAYS AND IMPROVEMENTS) ACT 1911 INCORPORATED WITH THIS ACT.

Part of Act to which Incorporated Sections apply.	Number of Section.	Marginal Note.
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LONDON COUNTY TRAMWAYS (ELECTRICAL POWER) ACT 1900.

II.	{	3	Use of electrical power.
		4	Special provisions as to use of electrical power.
		6	Power to construct and provide appliances.
		7	Further provisions as to paving materials of roads.
		9	Application of materials excavated in construction of works.
		10	Alterations in streets &c.
		11	Electrical power works subject to Tramways Act 1870.
		12	Drainage and cleaning of rails and conduit.
		13	Reference of certain questions to arbitration.
		14	Posts &c. to be removed if user discontinued.
		22	Agreements as to supply of electric energy.

LONDON COUNTY COUNCIL (TRAMWAYS AND IMPROVEMENTS) ACT 1901.

II.	{	7	Tramways not to be opened until certified by Board of Trade.
		8	As to rails of tramways.
		9	Rails to be maintained on level of roadway.
		10	Saving rights of access to sewers.
		11	Penalty for not maintaining rails and roads in good condition and inspection of tramways.

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A.D. 1924.

Part of Act to which Incorporated Sections apply.	Number of Section.	Marginal Note.
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LONDON COUNTY COUNCIL (TRAMWAYS AND IMPROVEMENTS)
 ACT 1901—*continued.*

II.	{	14	Use of tramways by road authorities for certain local purposes.
		17	Power to Council to work tramways.
		19	For protection of Postmaster-General.
		[except (b) (5) thereof].	
III.	{	22	Provision against interference with tramways.
		29	Streets may be raised or lowered.
		30	Deviation from line and levels.
		32	Carriageway footway sewers and other works.
		33	Directing how pavement shall be laid and made.
IV.	{	34	Sewers or drains to be arched over or filled up.
		35	Power to alter steps areas pipes &c.
		38	Power to sell materials.
		41	Power to certain persons to grant easements &c. by agreement.
		42	Correction of errors &c. in deposited plans and book of reference.
II. and III.	{	43	Power to Council to enter upon property for survey and valuation.
		48	Alteration of position of water gas and other pipes.
III.	{	49	For protection of gas and water companies.
		50	Alteration of electric lines.
IV.	{	54	Council may sell land in the first instance without having previously granted a lease thereof.
		55	Council may let or exchange lands.
		57	Receipts of Council to be effectual discharges.
III.	{	58	Power to Council to make agreements with owners of property &c.
		66	Agreements for closing accounts in cases of joint works.
II.	{	68	Separate accounts of receipts and payments relating to tramways.

LONDON COUNTY COUNCIL (TRAMWAYS AND IMPROVEMENTS) ACT 1907.

II.	{	7 (1)	Motive power.
		9	Gauge of tramways.
		12	Application of section 32 of Tramways Act 1870.
		14	Power to make additional crossovers and to double tramway lines.

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FIRST SCHEDULE—*continued.*

Part of Act to which Incorporated Sections apply.	Number of Section.	Marginal Note.
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LONDON COUNTY COUNCIL (TRAMWAYS AND IMPROVEMENTS) ACT 1907—*continued.*

II.	17	Power to Postmaster-General in relation to posts &c.
II. and III.	21	Power to make subsidiary works stop up streets &c.
IV.	32	Council to dispose of lands within a certain period.
	33	As to sale of ground rents.
II.	37	Amending section 12 of London County Tramways (Electrical Power) Act 1900.
II. and III.	40	Power to stop up ways temporarily.

LONDON COUNTY COUNCIL (TRAMWAYS AND IMPROVEMENTS) ACT 1911.

II.	11	For protection of Royal Observatory Greenwich.
	14	Commissioner of police may affix notices to standards.

SECOND SCHEDULE.

(Referred to in Section 9.)

DESCRIPTIONS OF PORTIONS OF STREET OF WHICH CARRIAGEWAY IS TO BE WIDENED.

Name of Thoroughfare.	City.	Side of Thoroughfare.	Description.
Queen Street Place.	City of London.	Western	Between points respectively 3 chains and 4½ chains southward of Upper Thames Street.

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